proper service by personal service, or that the affidavit of service fails to comply with Code of Civil Procedure sections 415.10 and 417.10, and that the default and default judgment are void for lack of personal jurisdiction over her. The motion to quash the summons and to set aside the default and default judgment under Code of Civil Procedure sections 418.10 and 473.5 is **DENIED**.

4. 9:00 AM CASE NUMBER: C23-02467
CASE NAME: CHRISTINA CRAVAT VS. BIO-RAD LABORATORIES, INC.
***HEARING ON MOTION IN RE: LEAVE TO FILE A SECOND AMENDED COMPLAINT**
FILED BY:
****TENTATIVE RULING:****

The motion is **continued** to June 29, 2026 at 9:00 a.m. in Department 34 by stipulation of the parties.

5. 9:00 AM CASE NUMBER: C24-00566
CASE NAME: LA TONYA BROOKS VS. GEICO INDEMNITY COMPANY
***HEARING ON MOTION IN RE:**
FILED BY:
****TENTATIVE RULING:****

Before the Court is Defendant Geico Indemnity Company (erroneously sued as Geico Insurance)'s Motion to Set Aside Entry of Default ("Motion").

Defendant's Request for Judicial Notice is **GRANTED**. (Evid. Code § 452(d).)

Procedural History

Plaintiff filed her original complaint on March 11, 2024, naming Geico as Defendant. Geico appeared in the matter and demurred to the complaint. Plaintiff filed a First Amended Complaint on July 2, 2024. There were additional challenges to the pleadings resulting in, relevant here, Plaintiff's Fourth Amended Complaint (4AC) being filed on October 21, 2025. Thereafter, on November 21, 2025, Plaintiff sought and a default was entered against Geico.

Geico filed this Motion on December 8, 2025. Plaintiff opposes the Motion.

Analysis

Defendant makes several arguments as to why the default should not have been entered against it.

Timing

First, Defendant notes that the Proof of Service attached to the 4AC indicates that it was served on October 20, 2025, the day ***before*** it was signed and dated by Plaintiff and filed with the Court. Defendant contends Plaintiff could not have served the 4AC on them before it was signed and/or filed with the Court – indicating that the Proof of Service is unreliable.

Even if the Court takes the Proof of Service as being accurate, the default should not have been entered as the time for Geico to respond had not run when it was granted. A defendant shall answer an amended complaint "within 30 days after service thereof…." (Code Civ. Proc. § 471.5.) California Code of Civil Procedure section 1010.6, which relates to electronic service of documents, states, in pertinent part that "[a]ny period of notice, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two ***court*** days…." (Code Civ. Proc. § 1010.6 (a)(3)(B) emphasis added.) As such, Defendant had 30 days + two ***court*** days to respond to the 4AC.

The 4AC was purportedly electronically served on October 20, 2025. Thirty days after October 20, 2025, is Wednesday, November 19, 2025. Adding two additional court days means that Defendant's response to the 4AC was due on or before Friday, November 21, 2025.

The Court's records indicate that Defendant submitted its demurrer and motion to strike at 3:01 p.m. on Friday, November 21, 2025. Defendant had until 11:59 p.m. on that date to file its papers. (Cal. R. Ct. 3.1300 (e).) As such, Defendant did timely respond to the 4AC.

Due to an apparent error in the clerk's office, the court accepted the Plaintiff's request for default on November 21 before Defendant's submission at 3:01 p.m. This is despite the fact that Plaintiff was not eligible to obtain a default until November 22 at the earliest. As the demurrer and motion to strike were received after the default, the clerk's office mistakenly rejected Defendant's responsive papers.

Based on the above, Defendant should not have been defaulted as it still had time to – and did in fact attempt to – file its responsive papers to the 4AC.

As such, the Default should be set aside. There are additional reasons worth discussing.

Obligation to warn of impending default

"[I]t is now well acknowledged that an attorney has an *ethical* obligation to warn opposing counsel that the attorney is about to take an adversary's default." (*Lasalle,* supra, 36 Cal.App.5th at 135.) In making this finding, the *Lasalle* Court "heartily endorse[d]" the related admonition found in the Rutter Group practice guide, which states:

> "[Practice Pointer:] If you're representing plaintiff and have had *any* contact with a lawyer representing defendant, don't even attempt to get a default entered without first giving such lawyer *written* notice of your intent to request entry of default, and a reasonable time within which defendant's pleadings must be filed to prevent your doing so." (*Ibid.* quoting Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2008) ¶5:71, p. 5-17.) [Note – The 2025 version of the Rutter Guide still contains this Practice Pointer]

Although there were a minority of cases that held that an ethical breach did not mean there was a legal violation, the *Lasalle* court distinguished those cases, finding they did not consider the enactment of Code of Civil Procedure section 583.130 in January 1984. (*Lasalle*, 36 Cal.App.5th at 136-137.) California Code of Civil Procedure section 583.130 states, in relevant part, that it "is the policy of this state that a plaintiff shall proceed with reasonable diligence in prosecution of any action but that ***all parties shall cooperate*** in bringing the action to trial or other disposition." (Code Civ. Proc. § 583.130, emphasis added.) "That is not complicated language… The policy of the state is that the parties to a lawsuit 'shall cooperate.' Period. Full Stop." (*Lasalle*, 36 Cal.App.5th at 130.)

Given the above, the "ethical obligation to warn opposing counsel of an intent to take a default is now reinforced by a statutory policy that all parties 'cooperate in bringing the action to trial or other disposition." (*Id.* at 137.) "Quiet speed and unreasonable deadlines do not qualify as 'cooperation' and cannot be accepted by the courts." (*Ibid*.)

The "obligation to advise opposing counsel of an impending default is part of an attorney's responsibility to the court and the legal profession and takes precedence over the obligation to represent the client effectively." (*Shapell Socal Rental Properties, LLC v. Chico's FAS, Inc.* (2022) 85 Cal.App.5th 198, 213 citing *Lasalle, 3*6 Cal.App.5th at 134, 137.) "The State Bar Civility Guidelines deplore the conduct of an attorney who races opposing counsel to the courthouse to enter a default before a responsive pleading can be filed." (*Id.* at 135.)

While Plaintiff here is acting in pro per, that does not excuse her actions in failing to notify opposing counsel that she intended to seek a default. "Pro. per. litigants are held to the same standards as attorneys." (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) Thus, courts "see no reason why the rules of professional conduct, at least as those rules govern conduct in the actual course of litigation, should not apply to pro per litigants in the very cases where pro per litigants elect to act as their own attorneys." (*Ibid.*) "To say otherwise would be to give pro per litigants … an unfair advantage over parties represented by attorneys bound by the code." (*Ibid.*)

Plaintiff made no attempt to warn Defendant. It is clear that Defendant is actively litigating this matter – as they have been disputing the pleadings for over two years. Plaintiff's attempt to obtain a default without alerting them will not be countenanced.

Conclusion

Based on the above, Defendants' Motion is **GRANTED**. The default entered on November 21, 2025, is set aside. Defendant shall file their responsive pleadings within ten (10) days of notice of entry of the Order on this Motion.

6. 9:00 AM CASE NUMBER: C24-02427
CASE NAME: REPUBLIC FLOOR, LLC VS. KARIN FAAPOULI
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: JP MORGAN CHASE BANK
****TENTATIVE RULING:****

Introduction

Before the Court is Defendant JPMorgan chase bank, N.A.'s ("JPMC") Demurrer to Plaintiff Republic Floor LLC's Second Amended Complaint ("SAC"). The Motion addresses the sixth cause of action for Violation of Commercial Code section 11207 and seventh cause of action for Negligence.